

CHAPTER 2

CODE OF PROFESSIONAL RESPONSIBILITY AND ACCOUNTABILITY

In this day and age, members of the bar often forget that the practice of law is a profession and not a business. Lawyering is not primarily meant to be a money-making venture, and law advocacy is not a capital that necessarily yields profits. The gaining of a livelihood is not a professional but a secondary consideration. Duty to public service and to the administration of justice should be the primary consideration of lawyers, who must subordinate their personal interests or what they owe to themselves. The practice of law is a noble calling in which emolument is a byproduct, and the highest eminence may be attained without making much money.

If much is demanded from an attorney, it is because the entrusted privilege to practice law carries with it correlative duties not only to the client but also to the court, to the bar, and to the public.⁶⁶

Lawyers carry the burden of living up to the ethical standards of the legal profession as embodied in the Code of Professional Responsibility because public confidence in law and in lawyers may be tainted by the irresponsible and improper conduct of members of the Bar. Those privileged to practice the legal profession

⁶⁶*Burbe v. Atty. Magulta, AC No. 99-634, June 10, 2002*

are expected to maintain not only a high standard of legal proficiency, but also of morality considering that they are always under the watchful public eye scrutinizing them both in their public and private lives.⁶⁷

Add to this, the Court emphasized that the practice of law is a privilege bestowed on those who show that they possessed and continue to possess the legal qualifications for it. Indeed, lawyers are expected to maintain at all times a high standard of legal proficiency and morality, including honesty, integrity and fair dealing. They must perform their fourfold duty to society, the legal profession, the courts and their clients, in accordance with the values and norms of the legal profession as embodied in the Code of Professional Responsibility.⁶⁸

As members of the legal profession, lawyers are bound to respect and uphold the law at all times. They must be honest with their dealings, especially with respect to their clients.

Being a lawyer, he must be aware of and was bound by the ethical canons of the Code of Professional Responsibility, which would have been enough to deter him from committing the falsification, as well as to make him unhesitatingly frustrate her prodding in deference to his sworn obligation as a lawyer to always act with honesty and to obey the laws of the land. Surely, too, he could not have soon forgotten his express undertaking under his Lawyer's Oath to "do

⁶⁷*Re: Anonymous Complaint Against Atty. Cresencio P. Co Untian, Jr., A.C. No. 5900, April 10, 2019*

⁶⁸*Lijauco v. Atty. Terrado, A.C. No. 6317, August 31, 2006*

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no falsehood, nor consent to its commission." Indeed, the ethics of the Legal Profession rightly enjoined every lawyer like him to act with the highest standards of truthfulness, fair play and nobility in the course of his practice of law.

Public confidence in law and lawyers may be eroded by the irresponsible and improper conduct of a member of the bar. Thus, a lawyer should determine his conduct by acting in a manner that would promote public confidence in the integrity of the legal profession. Members of the Bar are expected to always live up to the standards embodied in the Code of Professional Responsibility as the relationship between an attorney and his client is highly fiduciary in nature and demands utmost fidelity and good faith.⁶⁹

With these ideals, the Supreme Court promulgated on June 21, 1988 the Code of Professional Responsibility which governed the conduct of all lawyers in the Philippines in the practice of the legal profession.

As held by the Court, lawyers are instruments for the administration of justice and vanguards of our legal system. They are expected to maintain not only legal proficiency, but also a high standard of morality, honesty, integrity and fair dealing so that the people's faith and confidence in the judicial system is ensured. They must, at all times, faithfully perform their duties to society, to the bar, to the courts and to their clients, which include prompt payment of financial obligations. They must conduct themselves in a manner

⁶⁹*Manalang v. Atty. Benosa- Buendia*, A.C. No. 12079, November 10, 2020

that reflects the values and norms of the legal profession as embodied in the Code of Professional Responsibility.

A lawyer can do honor to the legal profession by faithfully performing his duties to society, to the bar, to the courts and to his clients. No moral qualification for bar membership is more important than truthfulness and candor. To this end, nothing should be done by any member of the legal fraternity which might tend to lessen in any degree the confidence of the public in the fidelity, honesty and integrity of the profession.⁷⁰

Code of Professional Responsibility and Accountability

On April 11, 2023 the Supreme Court adopted the Code of Professional Responsibility and Accountability (CPRA) which superseded the Code of Professional Responsibility which was promulgated on June 21, 1988.

As ruled by the Court, a lawyer's worthiness to remain as such was measured previously against the Code of Professional Responsibility which was promulgated on June 21, 1988. Thirty-four years later, or on April 11, 2023, the Court promulgated the Code of Professional Responsibility and Accountability (CPRA). It took effect on May 29, 2023 and explicitly states that its provisions shall be applied to all pending and future cases, except to the extent that its retroactive application would not be feasible or would work injustice in which case the procedure under which the cases were filed

⁷⁰*Sosa v. Atty. Mendoza, A.C. No. 8776, March 25, 2015*

shall govern. The CPRA, like its precursor enjoins lawyers from performing improper acts, such as the falsification of court decisions.⁷¹

The CPRA is an offshoot of the current situation confronting the legal profession, particularly the prevalent use and/or misuse of the different social media platforms by everybody including lawyers and law students. The Supreme Court has been admonishing lawyers to use their social media accounts for the good of the public and not to make this as avenues to disparage or damage anyone's reputation including their clients.

As held by the Court regarding the lawyer's defamatory Facebook posts "The Court has examined the records of this case and concurs with the IBP's findings, except as to the penalty imposed on the respondent.

At the outset, the Court notes that respondent never denied that he posted the purportedly vulgar and obscene remarks about complainant and BMGI on his Facebook account. In defense, however, he invokes his right to privacy, claiming that they were "private remarks" on his "private account" that can only be viewed by his circle of friends. Thus, when the complainant accessed the same, she violated his constitutionally guaranteed right to privacy.

The defense is untenable. Facebook is currently the most popular social media site, having surpassed one (1) billion registered accounts and with 1.71 billion monthly active users. Social media are web-based platforms that enable online interaction and facilitate users to

⁷¹*Judge Ray Alan T. Drilon and Atty. Corazon P. Romero v. Atty. Ariel D. Maglalang, A.C. No. 8471, August 22, 2023*

generate and share content. There are various classifications of social media platforms and one can be classified under the "social networking sites" such as Facebook.

Facebook is a "voluntary social network to which members subscribe and submit information. It has a worldwide forum enabling friends to share information such as thoughts, links, and photographs, with one another." Users register at this site, create a personal profile or an open book of who they are, add other users as friends, and exchange messages, including automatic notifications when they update their profile. A user can post a statement, a photo, or a video on Facebook, which can be made visible to anyone, depending on the user's privacy settings.

Consequently, before one can have an expectation of privacy in his or her online social networking activity – in this case, Facebook – it is first necessary that said user manifests the intention to keep certain posts private, through the employment of measures to prevent access thereto or to limit its visibility. This intention can materialize in cyberspace through the utilization of Facebook's privacy tools. In other words, utilization of these privacy tools is the manifestation, in the cyber world, of the user's invocation of his or her right to informational privacy.

The bases of the instant complaint are the Facebook posts maligning and insulting complainant, which posts respondent insists were set to private view. However, the latter has failed to offer evidence that he utilized any of the privacy tools or features of Facebook available to him to protect his posts, or that

he restricted its privacy to a select few. Therefore, without any positive evidence to corroborate his statement that the subject posts, as well as the comments thereto, were visible only to him and his circle of friends, respondent's statement is, at best, self-serving, thus deserving scant consideration.

Moreover, even if the Court were to accept respondent's allegation that his posts were limited to or viewable by his "Friends" only, there is no assurance that the same – or other digital content that he uploads or publishes on his Facebook profile – will be safeguarded as within the confines of privacy, in light of the following: (1) Facebook "allows the world to be more open and connected by giving its users the tools to interact and share in any conceivable way"; (2) A good number of Facebook users "befriend" other users who are total strangers; (3) sheer number of "Friends" one user has, usually by the hundreds; and (4) A user's Facebook friend can "share" the former's post, or "tag" others who are not Facebook friends with the former, despite its being visible only to his or her own Facebook friends.

Thus, restricting the privacy of one's Facebook posts to "Friends" does not guarantee absolute protection from the prying eyes of another user who does not belong to one's circle of friends. The user's own Facebook friend can share said content or tag his or her own Facebook friend thereto, regardless of whether the user tagged by the latter is Facebook friends or not with the former. Also, when the post is shared or when a person is tagged, the respective Facebook friends of the person who shared the post or who was tagged can

view the post, the privacy setting of which was set at "Friends." Under the circumstances, therefore, respondent's claim of violation of right to privacy is negated.

Neither can the Court accept the argument that the subject remarks were written in the exercise of his freedom of speech and expression.

Time and again, it has been held that the freedom of speech and of expression, like all constitutional freedoms, is not absolute. While the freedom of expression and the right of speech and of the press are among the most zealously protected rights in the Constitution, every person exercising them, as the Civil Code stresses, is obliged to act with justice, give everyone his due, and observe honesty and good faith. As such, the constitutional right of freedom of expression may not be availed of to broadcast lies or half-truths, insult others, destroy their name or reputation or bring them into disrepute.⁷²

Preamble

Ethics is the experiential manifestation of moral standards. The observance of these standards of conduct is both a function of personal choice and formal compulsion. A lawyer is ideally ethical by personal choice. A code of ethics expressly adopted represents society's consensus and dictate to conform to a chosen norm of behavior that sustains the community's survival and growth.

⁷²*Belo-Henares v. Atty. Roberto "Argee" C. Guevarra*, A.C. No. 11394, December 01, 2016

The Code of Professional Responsibility and Accountability, as an institutional imperative, is meant to foster an environment where ethical conduct performs a dedicated role in the administration of justice. In particular, the standards embodied in the Code of Professional Responsibility and Accountability uniquely address the characteristics of the Filipino lawyer as an amalgamation of influences and moorings, i.e., familial, cultural, religious, academic, political, and philosophical. Inherently a social being, the Filipino lawyer inevitably develops and cultivates relations, preferences and biases. The conscious adoption of ethical standards that accounts for such relationships and personal choices balanced against the demands of right and justice is envisioned to govern and regulate these personal choices and make them consistent with the institutional objectives.

The existence of a free and an independent society depends upon the recognition of the concept that justice is based on the rule of law.

As a guardian of the rule of law, every lawyer, as a citizen, owes allegiance to the Constitution and the laws of the land; as a member of the legal profession, is bound by its ethical standards in both private and professional matters; as an officer of the court, assists in the administration of justice; and as a client's representative, acts responsibly upon a fiduciary trust.

An ethical lawyer is a lawyer possessed of integrity. Integrity is the sum total of all the ethical values that every lawyer must embody and exhibit. A lawyer with integrity, therefore, acts with independence, propriety, fidelity, competence and diligence, equality and accountability.

Failure to abide by the Code results in sanctions.

The Supreme Court ruled that: Verily, members of the Bar are expected at all times to uphold the integrity and dignity of the legal profession and refrain from any act or omission which might lessen the trust and confidence reposed by the public in the fidelity, honesty, and integrity of the legal profession. By no insignificant measure, respondent blemished not only his integrity as a member of the Bar, but also that of the legal profession. In other words, his conduct fell short of the exacting standards expected of him as a guardian of law and justice.⁷³

⁷³Judge Ray Alan T. Drilon and Atty. Corazon P. Romero v. Atty. Ariel D. Maglalang, A.C. No. 8471, August 22, 2023